

3.

CASE #	CASE NAME	HEARING NAME
CVPS2506122	DOG HOUSE PASEO DEL REY, LLC VS CANYON ESTATES HOMEOWNERS ASSOCIATION	DEFENDANTS CANYON ESTATES HOME OWNERS ASSOCIATION, DESERT RESORT MANAGEMENT, INC. DBA ASSOCIA DESERT RESORT MANAGEMENT, NANCY BURKE, MICHAEL WALLACE AND RANDALL WELSH'S MOTION TO STRIKE AS TO PLAINTIFFS' THIRD AMENDED COMPLAINT

Tentative Ruling:

The motion to strike fails to comply with CRC rule 3.1322(a), putting the onus on the court to identify and number requests for ruling.

Accordingly the motion to strike is denied in its entirety.

Defendants' Motion to Strike DENIED.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2506122	DOG HOUSE PASEO DEL REY, LLC VS CANYON ESTATES HOMEOWNERS ASSOCIATION	MOTION FOR LEAVE TO AMEND 3RD AMENDED COMPLAINT FOR BREACH OF CONTRACT/WARRANTY OF DOG HOUSE PASEO DEL REY, LLC BY DOG HOUSE PASEO DEL REY, LLC, MICHAEL WILLIAMS, AS TRUSTEE TO THE BRAD ROBERT PRESCOTT LIVING TRUST, MICHAEL WILLIAMS, BRIAN HARP KRAFT, TRUSTEE TO THE BRIAN HARP KRAFT LIVING TRUST

Tentative Ruling: C.C.P. §473 authorizes the court to grant leave to amend any pleading "in furtherance of justice, and on such terms as may be proper." A motion for relief under CCP § 473 is addressed to the sound discretion of the trial court, and the exercise of that discretion will not be disturbed on appeal unless there is a clear showing that it was abused. (*Carroll v. Abbott Laboratories, Inc.* (1982) 32 Cal.3d 892, 897-898; *Record v. Reason* (1999) 73 Cal.App.4th 472, 486.)3.1324(b).

California courts have developed "a policy of great liberality in allowing amendments at any stage of the proceeding so as to dispose of cases upon their substantial merits where the authorization does not prejudice the substantial rights of others." (*Dunzweiler v. Superior Court* (1968) 267 Cal.App.2d 569, 576.) Thus, if a motion is timely and the amended pleading will not prejudice the opposing party, it is error not to allow leave to amend. (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048;

Morgan v. Superior Court (1959) 172 Cal.App.2d 527, 530 [“If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion”].)

While courts will occasionally deny leave to amend when the motion is brought on the eve of trial (*Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 487-88; *Nelson v. Specialty Records, Inc.* (1970) 11 Cal.App.3d 126, 139-40), “it is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment.” (*Kittredge Sports Co.*, 213 Cal.App.3d 1045, 1048; see also *Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 761.) Prejudice can occur when an amendment “open[s] up an entirely new field of inquiry without any satisfactory explanation as to why this major change in point of attack had not been made long before trial.” (*Magpali*, 48 Cal.App.4th 471, 487) or when allowing amendment would result in a delay of trial, loss of critical evidence, or added preparation expenses. (*Solit v. Tokai Bank* (1999) 68 Cal.App.4th 1435, 1448.) But the fact that the amendment involves a change in legal theory, or will cause a more favorable result for the plaintiff, is not prejudice. (*Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 490.)

While leave to amend may be denied if the proposed amendment fails to state a cause of action (*California Casualty General Ins. Co. v. Superior Court* (1985) 173 Cal.App.3d 274), “the preferable practice would be to permit the amendment and allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings.” (*California Casualty*, 173 Cal.App.3d 173, 281.) Leave to amend should be denied for failure to state a cause of action only when the insufficiency of the proposed amendment is established by controlling precedent and the insufficiency could not be cured by further appropriate amendment. (*California Casualty*, 173 Cal.App.3d 173, 281.)

Plaintiffs submitted an original complaint on August 14, 2025, followed by the First Amended Complaint on November 21, 2025. After the court granted a motion to strike several portions of the FAC related to punitive damages, Plaintiffs filed a Second Amended Complaint on March 2, 2026. A sustained demurrer as referenced in the tentative ruling for the Demurrer to the 3rd Amended Complaint, resulted in Plaintiffs filing a Third Amended Complaint on June 11, 2026. Plaintiffs now seek leave to amend two months after having already filed their Third Amended Complaint with the added causes of action.

In the declaration of Plaintiffs’ attorney, Eric M. Khodadian, he states that the additional causes of action were not made “because Plaintiffs did not become aware that these additional causes of action may be asserted until Plaintiffs were in the process of drafting the TAC...” (Dec. ¶15). This statement is not in compliance with CRC 3.1324(b) which requires the moving party to include in the declaration when the facts were discovered giving rise to the amendment AND why it was not made earlier. There is no basis as to what facts were discovered and how they were not discovered earlier, especially in light of the multiple revisions of the complaint as outlined above.

However, as pointed out in Plaintiff's reply the new causes of action for Premises Liability, (12th), Trespass (13th) and Financial Elder Abuse (14th) are based on allegations and facts previously pleaded in the Second Amended Complaint, and the court finds that permitting those causes of action as well as punitive damages to be included is not prejudicial.

Plaintiff's Motion for Leave to Amend is GRANTED.

Plaintiff is directed to submit an amended complaint reflecting the amended causes of action 1st-7th and 10th, and include the new causes of action listed in the preceding paragraph.

Amended complaint to be filed within 30 days of this order.

Case Management Conference continued to November 9, 2026.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2507057	GUILLAUME VS CITY OF CATHEDRAL CITY	MOTION TO STRIKE 1ST AMENDED COMPLAINT OF RONDA GUILLAUME BY CITY OF CATHEDRAL CITY

Tentative Ruling: No tentative ruling.

Hearing is continued to September 21, 2026 to permit Defendant to submit a Reply to the untimely filed Opposition. Reply to be filed by September 14, 2026. No further briefing permitted.

Case Management Conference continued to September 21, 2026.

6.

CASE #	CASE NAME	HEARING NAME
CVPS2600851	PALACIOS VS ANSCHUTZ ENTERTAINMENT GROUP, INC., A CORPORATION	DEMURRER ON 1ST AMENDED COMPLAINT OF JAVIER REGINO PALACIOS BY GOLDENVOICE, LLC, A LIMITED LIABILITY COMPANY

Tentative Ruling: No tentative ruling.

The hearing on the demurrer is continued to October 23, 2026. The parties are ordered to ***meet and confer via in person, teleconference or phone*** for the purpose of determining whether an agreement can be reached that would resolve the objections raised in the demurrer. As part of the meet and confer process, Defendant shall identify the specific causes of action that it believes are subject to demurrer and identify with legal support the basis of the deficiencies. Plaintiffs shall provide legal support for their position that the pleading is legally sufficient or, in the alternative, how the complaint may be amended to cure any legal insufficiency.